

23GDCV00858 23GDCV00858

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Case Number: 23GDCV00858 Hearing Date: August 21, 2026 Dept: D

TENTATIVE RULING

Calendar: 2

Date: August 21, 2026

Case No: 23GDCV00858 Trial Date: October 4, 2027

Case Name: Khatagov v. Valet Service Unit, LLC, et al.

DEMURRER

[CCP § 430.10]

Moving Party: Intervenor, Farmers Insurance and Cross-Defendant Baghdasaryan Ashot

Responding Party: Defendant, Gor Mkrtchyan

RELIEF REQUESTED:

Sustain demurrer to Gor Mkrtchyan's Cross-Complaint

CAUSES OF ACTION: from Complaint

1) Assault

2) Battery

3) Negligence

CAUSES OF ACTION: from Gennaro's Inc.'s Cross-Complaint

1) Implied Indemnity

2) Contribution

3) Express Indemnity

4) Breach of Contract

CAUSES OF ACTION: from Gor Mkrtchyan's Cross-Complaint

1) Assault

2) Battery

3) Intentional Infliction of Emotional Distress

4) Negligent Infliction of Emotional Distress

5) Negligence – Premises Liability

6) Negligent Hiring, Supervision, or Retention

SUMMARY OF FACTS:

Plaintiff Kazbek Khatogov ("Plaintiff and/or Khatogov") alleges that on February 1 2022, he was a patron of defendants G Lounge and Graff Restaurant and Banquet, Inc. Upon arrival, the vehicle in which Plaintiff arrived, which was owned by his friend, was provided to a valet attendant for parking. The valet service was owned and operated by defendant Valet Service Unit, LLC. Plaintiff alleges that when he later requested return of the vehicle, Defendants refused to provide it to him. The Complaint alleges that defendant Doe 1 began to verbally assault and threaten Plaintiff, and thereafter physically attacked him, stabbing Plaintiff in the abdomen and causing injuries that required surgery.

Plaintiff alleges that Defendants hired, managed, supervised and retained control over Doe 1 as an employee or agent, and knew or should have known of Doe 1's propensity for violence. Plaintiff further alleges that Doe 1 brought a weapon with him to work, and posed a foreseeable risk of harm, as a nearby security guard allegedly observed the altercation preceding the stabbing but failed to prevent the incident.

On October 30, 2024, Plaintiff filed an Amendment to the Complaint, substituting for the fictitious name Doe 1, the true name Gennaro's Inc.

On December 17, 2024, the parties submitted a Joint Stipulation, agreeing to amend the complaint to allege that defendant Gennaro's, Inc. is Doe 4, rather than Doe 1, the first cause of action for assault and second cause of action for battery are dismissed with prejudice as against defendant Gennaro's, Inc., and Plaintiff's request for punitive damages is stricken as against that defendant. The stipulation was signed and filed as an order of the court on December 20, 2024.

On May 8, 2026, defendant Gor Mkrtchyan ("Mkrtchyan") filed a Cross-Complaint against Plaintiff, and co-defendants Baghdasaryan Ashot, Baghdasaryan Tigran, Graff Restaurant and Banquet, Inc., and G Lounge.

Mkrtchyan's Cross-Complaint alleges that on January 31, 2022, he was working as a valet service employee at G Lounge. Mkrtchyan alleges that he was approached by Alan Kokoev ("Kokoev"), a friend and associate of Plaintiff/Cross-Defendant Kazbek Khatogov, who wished to retrieve his vehicle. When Mkrtchyan returned with the vehicle, he heard voices and saw Kokoev wielding a knife and moving towards Vahe Aghababyan ("Aghababyan"). An altercation then ensued between Kokoev and Aghababyan. The Cross-Complaint alleges that Khatogov and Kokoev repeatedly punched Aghababyan and slammed Aghababyan into the pavement. Mkrtchyan, seeing that Aghababyan was in danger, proceeded to intervene at which point Khatogov and Kokoev began to violently attack Mkrtchyan, punching him in the face with brass knuckles, and stabbing Mkrtchyan in the leg and face, rendering him unconscious. The Cross-Complaint alleges that G Lounge's security guard witnessed the entire altercation and yet took no steps to separate the parties or call 911.

The Court has deemed this case related to another case, LASC Case No. 23GDCV02059, pending in the Alhambra courthouse, Department V, and ordered that case assigned to Department D in Glendale, with this case to be the lead case.

ANALYSIS:

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747; CCP, § 430.10, subd. (e).)

To sufficiently allege a cause of action, a complaint must allege all the ultimate facts—that is, the facts needed to establish each element of the cause of action pleaded. (Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 212, superseded by statute as stated in Branick v. Downey Savings & Loan Assn. (2006) 39 Cal.4th 235, 242.) "[E]ach evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.)

In testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-67.) Courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, Jones v. Lodge at Torrey Pines Partnership (2008) 42 Cal.4th 1158, 1162.) A demurrer, however, "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn, supra, 147 Cal.App.4th at p. 747.)

Statute of Limitations

The statute of limitations for an action for injury caused by the wrongful act or neglect of another is two years. (CCP, § 335.1.)

Intervenor Farmers Insurance and Cross-Defendant Baghdasaryan Ashot (the “Demurring Parties”) argue that the fourth, fifth and sixth causes of action alleged in the Cross-Complaint are barred by the applicable two-year statute of limitations. The Cross-Complaint alleges that the incident occurred on January 31, 2022. Accordingly, Demurring Parties argue that the Cross-Complaint, filed on May 8, 2026, is untimely.

“The equitable tolling of statutes of limitations . . . is ‘designed to prevent unjust and technical forfeitures of the right to a trial on the merits when the purpose of the statute of limitations—timely notice to the defendant of the plaintiff’s claims—has been satisfied.’” (McDonald v. Antelope Valley Community College Dist. (2008) 45 Cal.4th 88, 99, internal citations omitted.) To determine whether equitable tolling may extend a statute of limitations, courts must analyze whether a plaintiff has established the doctrine’s three elements: timely notice to the defendant, lack of prejudice to the defendant, and reasonable and good faith conduct by the plaintiff.” (Saint Francis Memorial Hospital v. State Dept. of Public Health (2020) 9 Cal.5th 710, 725, quoting Addison v. State of California (1978) 21 Cal.3d 313, 319.)

In opposition, Mkrtchyan argues that the Cross-Complaint sufficiently pleads equitable tolling because Mkrtchyan alleges timely notice, lack of prejudice, and good faith and reasonable conduct. (X-Compl., ¶¶ 27-29.)

The Cross-Complaint alleges that Cross-Defendant Ashot Baghdasaryan had timely notice of Mkrtchyan’s injuries and potential claims because he was named as a defendant in the related action, Aghababyan v. Kokoev et al., Case No. 23GDCV02059, which arose out of the same altercation. (X-Compl., ¶ 27.) However, the tolling benefit flows only to the defendant being sued and only as against the plaintiff who initiated the action. (Trindade v. Superior Court (1973) 29 Cal.App. 3d 857, 859-860.) The Aghababyan action was filed to vindicate Aghababyan’s injuries, not Mkrtchyan’s injuries. Mkrtchyan is not a party in the Aghababyan action at all. Thus, Aghababyan filing his separate action does not constitute notice to the Demurring Parties in this action of any need to investigate the facts which form the basis for Mkrtchyan’s injuries alleged in the Cross-Complaint here. The entire structure of equitable tolling presupposes that the party seeking tolling is the same party who provided the prior timely notice. Courts applying the doctrine have consistently analyzed it from the perspective of the claimant whose earlier filing allegedly gave notice, not a stranger to that filing. (See McDonald, supra, 45 Cal.4th 88; see also Saint Francis Memorial Hospital, supra, 9 Cal.5th 710.)

Thus, the Court does not find that the related action constitutes timely notice for the claims Mkrtchyan alleges against the Demurring Parties here. Accordingly, on the face of the Cross-Complaint, the claims are barred by the applicable two-year statute of limitations.

The Demurrer is SUSTAINED, without leave to amend.

RULING:

Intervenor Farmers Insurance and Cross-Defendant Baghdasaryan Ashot’s Demurrer to the Cross-Complaint is SUSTAINED, without leave to amend.

By the end of the business day, Demurring Parties are ordered to submit an order for dismissal pursuant to CCP section 581, subdivision (f)(1).

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.